Pilot Build and Platform Agreement

DRAFT FOR DISCUSSION — 7 November 2026

Draft for discussion between Your AI Ltd and THEL (Midlands) Ltd, trading as Trans Haul. Every figure is shown as **x** until the build and price are agreed. This is a working draft, not legal advice: have it reviewed by a solicitor before signing.

Parties and background

This agreement is dated x and is between:

1. **Your AI Ltd**, a company registered in England and Wales (company number x), whose registered office is at x ("**Your AI**"); and
2. **THEL (Midlands) Ltd**, trading as Trans Haul, a company registered in England and Wales (company number x), whose registered office is at x, Dunstable ("**Trans Haul**").

Background

A. Your AI has developed a cloud-based operator platform for hauliers (the "**Platform**"). It brings together information from a haulier's existing systems, highlights what needs attention, and helps the team act on it.

B. The Platform is not a transport management system. It does not route vehicles, raise invoices, book jobs or calculate drivers' hours. Those remain in the haulier's existing systems.

C. Trans Haul wishes to be the first haulier to use the Platform, through a pilot configured to its operation, on the terms below.

D. Your AI intends to offer the Platform to other hauliers, including through Clearpath under a separate partner agreement. Trans Haul's founding-customer terms are set out in clause 8.

1. Definitions

- **Acceptance** — Trans Haul confirming, under clause 4, that a milestone meets its acceptance criteria.
- **Add-on Modules** — the optional modules listed in Schedule 1, Part B, that Trans Haul chooses to take.
- **Core Modules** — the modules listed in Schedule 1, Part A.
- **Customer Data** — all data that Trans Haul, its staff, drivers or customers put into the Platform, or that the Platform reads from Trans Haul's systems.
- **Go-Live** — the date Trans Haul starts using the Platform in its daily operation, after Acceptance of the final milestone.

- **Pass-through Costs** — third-party software and service costs incurred only to run Trans Haul's instance (for example hosting, email delivery and integration tools), listed in Schedule 2.
- **Pilot** — the discovery, configuration, build, testing and first x months of live use described in Schedule 1.
- **Source Systems** — Trans Haul's existing systems the Platform reads from, including Vigo, Tachomaster, its accounting system and SharePoint.

2. The pilot

2.1 Your AI will configure and build the Platform for Trans Haul as set out in Schedule 1, and provide it as a hosted service from Go-Live.

2.2 The Platform reads the Source Systems through read-only connections, scheduled reports or file exports. It does not write back to them. Trans Haul's existing systems remain its systems of record.

2.3 Scope will be confirmed in writing after the discovery day (clause 4.1). Until then, Schedule 1 is the working scope.

3. Out of scope and changes

3.1 The following are not part of the Pilot: vehicle routing, job booking and planning in place of the TMS, invoicing, payroll, and the calculation or enforcement of drivers' hours.

3.2 Either party may request a change to the scope in writing. Your AI will reply within x working days with the effect on price and timetable. No change takes effect until both parties agree it in writing.

3.3 Changes are charged at x per day, or at a fixed price agreed for that change.

4. Delivery and acceptance

4.1 **Discovery.** Your AI will hold x onsite discovery day(s) with Trans Haul's operations and transport team within x working days of signature, and confirm the scope in writing within x working days after it.

4.2 **Milestones.** Your AI will deliver the Pilot in these milestones, targeting the dates shown:

Milestone	What is delivered	Target date
M1 Discovery and confirmed scope	Written scope and data map	x
M2 Data feeds	Automated feeds from the agreed Source Systems working on Trans Haul data	x

Milestone	What is delivered	Target date
M3 Core Modules	Core Modules configured and available for testing	x
M4 Add-on Modules	Chosen Add-on Modules available for testing	x
M5 Go-Live	Platform in daily use, staff invited, training given	x

4.3 **Testing.** For each milestone, Trans Haul has x working days to test against the acceptance criteria in Schedule 1 and either accept it or list the specific defects. Your AI will fix listed defects and resubmit.

4.4 **Deemed acceptance.** A milestone is accepted if Trans Haul uses it in its live operation, or does not respond within the testing period.

4.5 **Delays.** Target dates move by the length of any delay caused by Trans Haul, the Source System suppliers, or a change agreed under clause 3.

5. What Trans Haul provides

5.1 A named decision-maker with authority to confirm scope and accept milestones: x.

5.2 Timely access to the Source Systems, including requesting API access from Vigo and Tachomaster, and forwarding scheduled reports or exports where an API is not available.

5.3 Access to staff for the discovery day and testing, and to sample data needed for the build.

5.4 Accurate data in its Source Systems. The Platform reports what those systems hold.

6. Fees and payment

6.1 **Build fee.** The fee for the Pilot build is £x, after a founding-customer discount of x% from Your AI's standard price of £x. It is payable:

- 50% (£x) on signature of this agreement; and
- 50% (£x) on Acceptance of milestone M5 (Go-Live).

6.2 **Platform fee.** From Go-Live, Trans Haul pays a monthly platform fee of £x for the Core Modules, plus £x a month for each Add-on Module it takes. The first x months after Go-Live are charged at £x a month.

6.3 **Pass-through Costs.** Your AI passes on Pass-through Costs at cost, with no mark-up, and shows the supplier invoices on request (open book). They are estimated at £x a month and listed in Schedule 2. Your AI will not commit to more than £x a month in Pass-through Costs without Trans Haul's written approval.

6.4 **Additional work.** Work outside the confirmed scope is charged under clause 3.3.

6.5 **Invoices.** Your AI invoices the platform fee and Pass-through Costs monthly in advance. Trans Haul pays each invoice within x days of the invoice date.

6.6 **VAT.** All fees exclude VAT, which is added at the prevailing rate.

6.7 **Late payment.** Your AI may charge interest on late payments under the Late Payment of Commercial Debts (Interest) Act 1998, and may suspend the service if an invoice remains unpaid x days after written notice.

6.8 **Price review.** Your AI may change the platform fee once a year from the first anniversary of Go-Live, by no more than x%, with x days' written notice.

7. Intellectual property

7.1 Your AI owns the Platform, including its software, designs, templates, data models and all improvements made during the Pilot, whether or not suggested by Trans Haul.

7.2 Trans Haul owns the Customer Data. Your AI uses it only to provide the Platform to Trans Haul.

7.3 Your AI grants Trans Haul a non-exclusive, non-transferable right for its staff, drivers and invited customer contacts to use the Platform during this agreement.

7.4 Trans Haul's own business information (its rates, customers, processes and documents) is not used in any other haulier's instance, and is covered by clause 10.

8. Resale and founding-customer terms

8.1 Trans Haul acknowledges that Your AI may offer the Platform to other hauliers, directly or through partners including Clearpath.

8.2 As founding customer, Trans Haul receives:

- the build discount in clause 6.1;
- the platform fee in clause 6.2 fixed for x months from Go-Live; and
- a referral fee of x% of the first x months' platform fees from any haulier Trans Haul introduces in writing who signs within x months of the introduction.

8.3 Any revenue share with Clearpath is agreed in a separate partner agreement and does not change Trans Haul's rights or fees under this agreement.

9. Data protection

9.1 For Customer Data that is personal data (including staff, driver and customer contact details, licence and tachograph information, and delivery locations), Trans Haul is the controller and Your AI is the processor.

9.2 Your AI will:

- process personal data only on Trans Haul's documented instructions, as set out in this agreement;
- keep it in the United Kingdom or the European Economic Area, or transfer it only with appropriate safeguards;
- use only the sub-processors in Schedule 3, and give x days' notice of any new one, during which Trans Haul may object;
- protect it with appropriate technical and organisational measures, including role-based access, encryption in transit and at rest, and daily backups;
- notify Trans Haul without undue delay, and in any case within x hours, after becoming aware of a personal data breach;
- help Trans Haul respond to data subject requests and regulators; and
- on termination, return the Customer Data in a common format and delete it within x days, unless the law requires it to be kept.

9.3 The parties will sign any further data processing terms that UK GDPR requires.

10. Confidentiality

10.1 Each party keeps the other's confidential information confidential and uses it only for this agreement.

10.2 The mutual non-disclosure agreement dated x continues to apply. Where it conflicts with this clause, the stricter term applies.

10.3 This clause continues for x years after this agreement ends.

11. Support and service levels

11.1 Support is available by email and phone between x and x on working days.

11.2 Your AI will respond to reported faults within these times:

Priority	Example	Response	Target fix
P1	Platform unavailable to all users	x hours	x hours
P2	A module or data feed not working	x hours	x working days
P3	Minor fault or question	x working days	Next scheduled release

11.3 Your AI aims for x% availability each month, excluding planned maintenance notified x days ahead and outages of third-party providers or Source Systems.

11.4 A data feed that stops because a Source System supplier changes or withdraws access is handled as a change under clause 3.

12. Warranties and liability

12.1 Your AI will perform its services with reasonable skill and care, and the Platform will materially match the confirmed scope.

12.2 The Platform shows information derived from the Source Systems and estimates (such as modelled costs, drivers' hours availability and funding headroom). It supports decisions but does not replace professional, legal or compliance judgement. Your AI is not liable for errors in data supplied by the Source Systems.

12.3 Neither party is liable for indirect or consequential loss, or for loss of profit, revenue or goodwill.

12.4 Each party's total liability under this agreement in any 12-month period is limited to £x or the fees paid in that period, whichever is greater.

12.5 Nothing limits liability for death or personal injury caused by negligence, fraud, or anything else that cannot be limited by law.

13. Term and termination

13.1 This agreement starts on signature and runs for the Pilot and then for an initial term of x months from Go-Live. After that it continues month to month until either party gives x days' written notice.

13.2 Either party may end this agreement immediately by written notice if the other materially breaches it and does not remedy the breach within x days of notice, or becomes insolvent.

13.3 If Trans Haul ends the agreement before Go-Live for convenience, the first build payment is non-refundable, and work done beyond it is charged at x per day.

13.4 On termination, Your AI provides a full export of the Customer Data within x days, then deletes it under clause 9.2.

14. General

14.1 This agreement, with its schedules and the NDA, is the whole agreement between the parties on its subject.

14.2 Neither party may assign this agreement without the other's written consent, which is not to be unreasonably withheld.

14.3 Neither party is liable for delay caused by events beyond its reasonable control.

14.4 Notices are given in writing to the addresses above, or by email to x (Your AI) and x (Trans Haul).

14.5 Any change to this agreement must be in writing and signed by both parties.

14.6 This agreement is governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.

Schedule 1 — Pilot scope

Working scope until confirmed after the discovery day (clause 4.1). Final modules to be agreed from Trans Haul's scope session.

Part A — Core Modules

Module	Acceptance criteria (summary)
Director dashboard	Yesterday's jobs, on time and late, revenue against target; costs planned vs actual; missing PODs and unbilled work; today's plan and cover. Figures reconcile to the Source Systems for x sample days
Operations manager view	Today's board, cover gaps, PODs and billing, actions
Transport manager view	Vehicles, drivers, compliance items and defects, with no financial figures shown
Plan vs actual costs	Job cost build-up from the agreed rate card; actual costs from Tachomaster reports and other agreed sources
Fleet and driver compliance	Licence reviews, infringement follow-ups, MOT and inspection dates, defects; due and overdue flagged
Actions and follow-ups	Raise, assign, progress and complete actions linked to jobs, vehicles and drivers, with history
Policies and procedures	Read-only access to the agreed SharePoint library, organised by category
Data feeds	Automated feeds from: x (to be confirmed: Vigo, Tachomaster scheduled reports, accounting system). File import for any source not yet automated
Team and access	Director invites users and sets roles; role-based access enforced on the server

Part B — Add-on Modules (tick those taken)

- ☐ Driver app: walkaround checks, check-ins, photo PODs — £x a month
- ☐ Customer tracking portal and delivery notifications — £x a month
- ☐ Cash and invoice finance view (debtors, funding headroom) — £x a month
- ☐ Driver cover planning — £x a month

Part C — Not in scope: see clause 3.1.

Schedule 2 — Fees summary

Item	Amount	When
Standard build price	£x	—
Founding-customer discount	x%	—
Build fee payable	£x	50% on signature, 50% at Go-Live
Platform fee, Core Modules	£x a month	Monthly in advance from Go-Live
Add-on Modules	£x a month each	Monthly in advance
Pass-through Costs (estimate)	£x a month, at cost, open book	Monthly
Additional work	£x a day	As agreed under clause 3

Pass-through Costs are expected to include hosting and database (Supabase), web hosting (Vercel), email delivery (Resend) and integration tooling (n8n), sized to Trans Haul's use.

Schedule 3 — Sub-processors

Sub-processor	Purpose	Data location
Supabase	Database, sign-in and file storage (POD photos)	x (UK or EU region)
Vercel	Hosting of the web application	x
Resend	Delivery notification and invitation emails	x
n8n	Integration hub for scheduled reports and API feeds	x

Signatures

Signed by authorised representatives of each party.

	For Your AI Ltd	For THEL (Midlands) Ltd t/a Trans Haul
Name	Sam Sahota	Paul Dyer
Position	Co-founder	Managing Director
Signature		
Date		